

VCU325489 Guereca, Gotxon vs. General Motors LLC

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-15

Motion: Plaintiff's Motion for Attorneys' Fees

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Re: Guereca, Gotxon vs. General Motors LLC

Case No.: VCU325489

Date: September 15, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiff's Motion for Attorneys' Fees

Tentative Ruling: To grant the unopposed motion and award \$12,130 in fees and \$2,374.50 in costs.

Facts

In this matter, Plaintiff purchased a 2021 GMC Sierra 1500 ("Vehicle") which allegedly experienced engine malfunction; transmission malfunction; vehicle shaking when idle; transmission jerking at high speeds, and an inoperable reverse camera.

On May 15, 2025, a notice of conditional settlement was filed.

On July 2, 2026, Plaintiff filed this motion to recover fees in the amount of \$22,947.00, plus a 1.1 multiplier and \$2,374.50 in costs, for a total award of \$27,616.20.

No opposition appears filed

Authority and Analysis

Lodestar Calculation

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

"Under that [lodestar]method, the court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.)" (Marshall, supra, 54 Cal.App.5th at 285.)

Here, Plaintiffs seek to recover 35.4 hours at rates ranging from \$625 to \$220 per hour, as well as for a flat rate for services in the amount of \$3,900, and anticipated hours as to this motion, as well as a 1.1 multiplier.

No Multiplier

As to the 1.1 enhancement sought by Plaintiff, such an award is based on the following factors:

The novelty and difficulty of the questions involved;

The skill displayed in presenting them;

The extent to which the nature of the litigation precluded other employment by the attorney; and

The contingent nature of the fee award. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

The Court finds Plaintiffs' justification for the multiplier is conclusory and does not set forth an adequate basis to award an enhancement. The Court does not find that the work cited demonstrates such extraordinary skill to justify an enhancement to the award sought. This case settled before trial, and the Court finds that this appears to be a standard Song-Beverly case, with no additional novelty or difficulty of issues evidenced from the supporting papers filed by Plaintiff.

As to the third factor, the Court does not find that Plaintiff's counsel was precluded from accepting other work.

As to the fourth factor, The Court further agree that the "contingent risk" here was minimal given the mandated fee-shifting of attorneys' fees and costs. (Ketchum v. Jones (2001) 24 Cal.4th 1122, 1141-42 [Where attorney fees are mandatory, the "contingent" risk of "establishing eligibility for the award" is not actually contingent and does not warrant an enhancement.])

The Court will not award an enhancement in this case.

Reasonable Local Rate

"The lodestar calculation begins with a determination of the 'reasonable hourly rate,' i.e., the rate 'prevailing in the community for similar work.'" (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)" (Marshall, supra, 54 Cal.App.5th at 285.) "The general rule is '[t]he relevant "community" is that where the court is located.'" (Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71.)" (Marshall, supra, 54 Cal.App.5th at 285.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced

trial judge is the best judge of the value of professional services rendered in his court.” (Id.) Additionally, the determination of the value of the legal services is committed to the discretion of the trial court without necessity of expert testimony. (Cordero-Sacks, v. Housing Authority (2011) 200 Cal App 4th 1267, 1286.)

There is no evidence provided that the attorney rates ranging from \$625 to \$450 per hour for counsel, and \$220 per hour for paralegals, are the prevailing rates in Tulare County for counsel, where this Court resides. This Court, based upon its experience as to the prevailing rates in Tulare County, sets the hourly rate at \$350 per hour for counsel. Further, the Court will set all paralegal work performed at the rate of \$150 per hour.

Number of Hours Reasonably Expended

Plaintiff's counsel's records indicate 35.4 hours incurred.

Although detailed time records are not required, courts have expressed a preference for contemporaneous billing and an explanation of work. (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “Of course, the attorney's testimony must be based on the attorney's personal knowledge of the time spent and fees incurred. (Evid.Code, § 702, subd. (a) [‘the testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter’].) Still, precise calculations are not required; fair approximations based on personal knowledge will suffice.” (Mardirossian & Associates, Inc. v. Ersoff (2007) 153 Cal.App.4th 257, 269.)

The starting point for the determination as to hours is the attorney's submitted time records. (Horsford v. Board of Trustees of Calif. State Univ. (2005) 132 Cal. App. 4th 359, 395-397—verified time records entitled to credence absent clear indication they are erroneous.)

Plaintiff has the burden of showing that the fees were reasonably necessary to the conduct of the litigation and were reasonable in amount. (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 34, as modified (Oct. 11, 2019), rev. denied (Jan. 2, 2020) [internal quotations and citations omitted].) If the party seeking fees fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, “then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [citing Nightingale v. Hyundai Motor Am. (1994) 31 Cal.App.4th 99, 104]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138 [where prevailing party fails to meet that burden, the court “has broad discretion to adjust the fee downward or deny an unreasonable fee altogether”].)

To start, the Court removes \$3,900 “flat rate charge” which fails to reflect the number of hours incurred. This is precisely the type of “blockbilled” entry that permits the Court to reduce the fee award. (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 441.)

Absent an opposition and other than the flat rate charged noted above, the Court identifies no other entries that warrant reduction. Additionally, the Court notes it does not award anticipated hours.

As a result, the Court calculates the fees as follows: 34.1 hours at \$350 per hour and 1.3 hours at \$150 per hour, for a total of \$12,130

Costs

Plaintiff seeks to recover \$2,374.50 in costs. As noted above, Defendant has not opposed this motion or the memorandum of costs. The Court will award \$2,374.50 in costs.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.